

1. MAISEL v. BUSSELL, ET AL., 23CV1464**Cross-Complainant Bussell's Motion to Serve by Publication**

On January 22, 2026, defendant / cross-complainant Ryan Bussell ("cross-complainant") filed the instant motion for an order authorizing service of summons and cross-complaint upon cross-defendants Dave Peters and Laura Peters (collectively, "cross-defendants") by publication.

Code of Civil Procedure section 415.50, subdivision (a) provides for service by publication "if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner" and that either: (1) a cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action, or (2) the party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property. (Code Civ. Proc., § 415.50, subd. (a).) Subdivision (b) mandates that "[t]he court shall order the summons to be published in a named newspaper, published in this state, that is most likely to give actual notice to the party to be served." (Code Civ. Proc., § 415.50, subd. (b).)

Having reviewed and considered the declarations submitted by cross-complainant in support of this motion, the court finds that a cause of action exists against cross-defendants (i.e., conversion), and that cross-complainant has demonstrated reasonable diligence in attempting methods of service other than publication. Between March 20, 2025, and April 2, 2025, a registered process server made six different attempts, at various times, to serve cross-defendants at their residence. (Miller Decl., ¶ 4.) Between July 21, 2025, and July 24, 2025, a registered process server made four additional attempts, at various times, to serve cross-defendants at their residence. During the attempt on July 24, 2025, a "John Doe," presumed to be cross-defendant

Dave Peters, pointed a rifle in the direction of the process server. Thereafter, cross-complainant hired the Tehama County Sheriff's Department to effectuate service of process. Between August 7, 2025, and August 15, 2025, a Tehama County Sheriff made four different attempts to serve cross-defendant Dave Peters; however, each attempt was unsuccessful and the deputy completed Proof of Unsuccessful Service.

TENTATIVE RULING # 1: THE MOTION IS GRANTED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.